

C J D A 38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT.

Criminal Appeal No. 87338-J of 2017

(Alam Khan vs. The State)

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Criminal Appeal No. 87339-J of 2017

(Farooq etc. Khan vs. The State)

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Murder Reference No.478 of 2017

(The State vs. Alam Khan)

J U D G M E N T

Date of hearing.	18.05.2021
Appellants by:	Mr. Javed Iqbal Bhatti, Advocate. Kh. Mohsin Abbas, Advocate (Defence Counsel). Both in Criminal Appeal No. 87338-J of 2017. Mr. Imtiaz Hussain Khan Baloch, Advocate for appellant in CrI. Appl. No. 87339-J of 2020.
State by	Mr. M. Naveed Umar Bhatti, DPG.
Complainant by	Nemo.

Muhammad Tariq Nadeem, J Through this single judgment, we intend to dispose of **Criminal Appeal No.87338-J of 2017** and **Criminal Appeal No. 87339 of 2017**, respectively filed by Alam Khan, Farooq Khan and Sanwal Khan (appellants) against their convictions and sentences alongwith **Murder Reference No.478 of 2017** sent by the learned trial court for confirmation or otherwise of the Death sentence of Alam Khan (appellant) being originated from the same judgment dated 21-07-20217 passed by learned Additional Sessions Judge, Kallur Kot, District Bhakkar in case F.I.R. No.410 dated 31.12.2016, registered at Police Station Kallur Kot, District Bhakkar in respect of offences under sections 392, 34, PPC, subsequently, after the death of injured Abdul Ghafoor offence under section 302, PPC was added. The appellants were convicted and sentenced as under:-

Alam Khan, appellant

Under section 302(b) PPC to 'Death' as Tazir for committing Qatl-i-Amd of Abdul Ghaffar (deceased). He was also ordered to pay Rs.5,00,000/- (rupees five hundred thousand only) to the legal heirs of the deceased as compensation under section 544-A of Cr.P.C and in default thereof to suffer simple imprisonment for six months.

He was also convicted under section 392 PPC and sentenced to undergo R.I. for ten years alongwith fine of Rs.1,00,000/-; in default thereof to further undergo S.I. for two years.

Farooq Khan and Sanwal Khan, appellants.

Under section 302(b) PPC to 'life imprisonment'. They were also directed to pay Rs.5,00,000/- (rupees five hundred thousand only) each to the legal heirs of the deceased as compensation under section 544-A of Cr.P.C and in default thereof to suffer simple imprisonment for six months.

Under section 392 (b), PPC. Sentenced to rigorous imprisonment of ten years each with fine of Rs. 1,00,000/- each and in case of default of payment of fine they shall suffer further simple imprisonment of two years each.

It was also ordered that the sentences of the appellants shall run concurrently except the sentences in lieu of payment of fine and compensation.

Benefit of section 382-B, Cr.P.C. was also extended to them.

2. The brief facts of the case as narrated in the FIR (Ex.PH) lodged on the written complaint (Ex.PG) of Naseer Ahmad, complainant (PW.12) are that on the fateful day i.e. 31-12-2016 at about 06:15 p.m., he alongwith Abdul Sattar son of Muhammad Hasan (PW13) were sitting at the merchant shop of his uncle Abdul Ghaffar (hereinafter referred to as the deceased) situated at Basti Mai Roshan Khasor Road Mangu Changar. In the meanwhile, three accused persons identification marks of them have been mentioned in the FIR armed with pistols reached there on motorcycle No.4019/BKK, stopped their motorcycle

outside the shop, entered in the shop and on gun point snatched Rs.10000/- and mobile from Abdul Ghaffar. When Abdul Ghaffar alongwith complainant Naseer Ahmad and Abdul Sattar, PW tried to apprehend the accused persons then one of the accused made fire shot at abdominal area of Abdul Ghaffar (deceased), due to which he fell down. Thereafter, accused persons took to their heels on their motorcycle. Hence, the FIR.

3. Appellants were arrested by Manzoor Ahmad, SI/I.O (PW18) on 16.01.2017 under section 54, Cr.P.C. They were sent to jail by the order of learned Area Magistrate on the same day for identification parade and finally identification parade was held on 23.01.2017 and PWs identified them as accused persons of instant case whereafter they were joined into investigation.

4. After completion of investigation, report under Section 173 of the Code of Criminal Procedure, 1898 was submitted against appellants. Learned trial court, after observing all the pre-trial codal formalities, framed charge against them to which they pleaded not guilty and claimed trial. The prosecution in order to prove its case produced as many as 14 witnesses out of which Naseer Ahmad, complainant (PW.12) and Abdul Sattar (PW.13) have furnished the ocular account. Muhammad Shafique Khan, draftsman appeared as (PW.3), who prepared site plan (Ex.PF & Ex.PF/1). Muhammad Ramzan 117/HC (PW.8) was the witness of recovery of pistols, bullets, cash amount, motorcycle and mobile phone at the instance of the appellants Sanwal Khan, Alam Khan and Farooq Khan on 29-01-2017, 01-02-2017 and 03-02-2017 respectively. Falaksher 767/C (PW.9) was also the witness of recovery of pistol alongwith bullets on 27-01-2017 at the instance of the appellant Farooq Khan. Mr. Muhammad Naeem, learned Magistrate 1st Class supervised the identification parade of accused persons, held on 23-01-2017 in jail premises vide report (Ex.PU). Zafar Iqbal, SI (PW.17) and Manzoor Ahmad, SI (PW.18) being the investigating officers, stated about the various steps taken by them during investigation of the case.

The medical evidence was furnished by Doctor Qazi Muhammad Tahir Kareem (PW.1) and Doctor Muhammad Saif Ullah (PW.2). On 31-12-2016, Doctor Qazi Muhammad Tahir Kareem (PW.1) initially conducted medical examination of then injured Abdul Ghaffar vide MLC (Ex.PA) and noted following injuries on his body:-

INJURIES

1. A fire arm entry wound circular measuring 01 cm x 01 cm about 05 cm above umbilicus slightly towards right side of midline with corresponding hole in the shirt.
2. A fire arm exit wound with averted borders measuring 01 cm x 1.2 cm about 04 cm above left iliac crest with corresponding hole on shirt.

On death of Abdul Ghaffar, Doctor Muhammad Saif Ullah (PW.2) on 14-01-2017 at about 05:00 a.m. conducted autopsy on the dead body of Abdul Ghaffar, deceased vide PMR (Ex.PB) and noted following injuries on his body:-

INJURIES

1. Entry wound of 01 cm x 01 cm on abdomen. 05 cm above umbilicus and 02 cm right to midline.
2. An exit wound of 01 cm x 1.2 cm, 04 cm above the left iliac crest.

In the opinion of doctor, the death was caused due to cardiac arrest due to kidney failure and septicemia as one kidney was removed and the other could not do functioning. This all happened due to injury No.1 and injury No.2 of gun shot. All the injuries were grievous in nature and were sufficient to cause death in ordinary course of nature. The probable time between injuries and death was 13 days and between death and postmortem examination was 14 hours.

Rest of the prosecution witnesses are formal in nature. The prosecution also produced documentary evidence in the shape of MLC of Abdul Ghaffar (Ex.PA) alongwith sketch of injuries (Ex.PA & Ex.PA/2), post mortem report of Abdul Ghaffar (Ex.PB) alongwith pictorial diagrams (Ex.PB/1 and Ex.PB/2), final opinion of the doctor regarding

the cause of death of Abdul Ghaffar (Ex.PC), injury statement (Ex.PD), inquest report (Ex.PE), scaled site plan (Ex.PF and Ex.,PF/1) notes with red ink given by I.O (Ex.PF2 and Ex.PF3), complaint (Ex.PG), FIR (Ex.PH), recovery memo of crime empty of 30 bore pistol (Ex.PI), recovery memo of blood stained earth (Ex.PJ), recovery memo of clothes (Ex.PK), recovery memo of pistol 30 bore and bullets (Ex.PL), recovery memo of pistol and bullets (Ex.PM), recovery memo of cash (Ex.PP), recovery memo of mobile phone (Ex.PQ), recovery memo of pistol and bullets (Ex.PR), recovery memo of clothes (Ex.PS), identification parade report (Ex.PU), injury statement of the then injured Abdul Ghaffar (Ex.PV) unscaled site plan regarding place of occurrence (Ex.PW), petition filed by IO for getting the copy of identification parade report (Ex.PY), application filed by I.O for the summoning of accused persons after identification parade (Ex.PZ), site plans without scale pertaining to the places of recoveries of pistols, bullets, motorcycle, cash and mobile phone (Ex.PAA to Ex.PFF), ruppit No.16 (Ex.PGG), report of Punjab Forensic Science Agency regarding blood stained earth (Ex.PHH), report of Punjab Forensic Science Agency pertaining to comparison of cartridges with firearms (Ex.PII) and closed its evidence.

5. After closure of prosecution evidence, statements under Section 342 Cr.P.C. of appellants were recorded in which they denied the allegations leveled against them and professed their innocence. While answering to the question, “why this case was registered against you and why the witnesses deposed against you?”, appellants unanimously replied as under: -

“The case against me and my co-accused is false. Neither I nor my co-accused went to the shop of Abdul Ghaffar nor committed any occurrence. PWs are inter se related and related to the deceased. They are interested in my conviction and in the conviction of my co-accused. IO of this case is not enjoying good reputation and various cases were registered against him regarding his inefficiency and corruption. It was blind murder case and IO implicated me just in order

to please his high ups with the connivance of the complainant ...”

The appellants neither opted to appear under Section 340(2) Cr. P.C. in disproof of the allegations levelled against them by the prosecution, nor produced defence evidence.

6. The learned trial court *vide* judgment dated 21-07-2017 found the appellants guilty, *hence*, convicted and sentenced them as mentioned and detailed above.

7. Learned counsel for the appellants has argued that the appellants have falsely been involved in this case, presence of both eyewitnesses namely Naseer Ahmad (PW12) and Abdul Sattar (PW13) at the time and place of incident is highly doubtful; that any source of light has not been described in F.I.R (Exh. PD) as well as in the statements of PWs before the court, similarly the investigating officer has not taken into possession any piece of evidence in that regard; that the medical evidence is only a corroborative piece of evidence and relevant only if primary evidence, i.e. ocular account is found confidence inspiring which is very much lacking in this case; that the appellants are not nominated in the F.I.R and they were arrested on 16.01.2017 and their identification parade was jointly held on 23.01.2017, i.e. with the delay of seven days; that the identification parade was not held in accordance with law; that it has been admitted by Mr. Muhammad Naeem, learned Magistrate Ist Class (PW16) who supervised the identification parade that he has not mentioned ages and features of dummies; further admitted by the learned Magistrate that accused persons raised objection that after their arrest their pictures were taken and their movie was made, the said objection of the accused persons was not rebutted by the Complainant and eyewitnesses and it was not attended to by him; that according to the proceedings of identification parade Exh.PU the learned Magistrate firstly wrote in his report that Naseer Ahmad (PW12) identified the person sitting at serial No. 6 as accused while placing his hand on his head and that number was subsequently changed as 7 through

overwriting and this fact is also admitted by PW16 that it is correct that at serial No. 7 in second last line firstly figure was written 6 but afterwards it was made 7 by overwriting and also admitted that at the said overwriting he did not put any initial/signatures; it is also admitted by PW16 that it is correct that at page No. 7 of identification parade report at serial No. 6 name of Muhammad Ashraf son of Muhammad Afzal caste Baloch R/O Kaneri District Bhakkar was mentioned in line No. 3; that recoveries of weapon of offences, as well as currency notes from the appellants are inconsequential; that while considering the case of prosecution from all angles it is replete with material contradictions and doubtful in nature; lastly prayed that the appellants are entitled for the benefit of doubt not as a matter of grace but as a matter of right.

8. On the other hand, learned Deputy Prosecutor General opposed these appeals on the grounds that the F.I.R has been lodged without any delay which is indicative of the fact that the presence of both eyewitnesses at the time and place of occurrence is quite natural and probable; that the prosecution witnesses have correctly identified the appellant in the test identification parade with roles played by them at the time of occurrence; that prosecution case is further corroborated by the recovery of weapons of offence and currency notes; that the prosecution has produced overwhelming and confidence inspiring evidence which is quite natural and believable; that the prosecution has successfully brought home the guilt against the appellants beyond any shadow of doubt, hence, the appeals have no substance are liable to be dismissed.

9. We have anxiously considered the arguments put forth by the learned counsel for the appellants as well as learned Deputy Prosecutor General for the State and scanned the record minutely.

10. The occurrence in this case allegedly took place on 31.12.2016 at 06.15 p.m. It was a month of December and darkness has already spread, although features of the assailants have been described in the F.I.R but there is haunting silence with regard to the source of light. From scanning

the entire evidence, we have reached at irresistible conclusion that no source of light has been given by the prosecution in the F.I.R during the course of investigation as well as in the statements of prosecution witnesses before the Court. Reliance is placed on the case of “**Gulfam and another v. The State**” (2017 SCMR 1189) wherein the August Supreme Court of Pakistan observed as under:-

“Courts below had incorrectly presumed that as the occurrence had taken place at a medical store, therefore, some electric light must be available at the spot.”

11. As far as presence of the prosecution witnesses at the place of occurrence we have noted that the eyewitnesses namely Naseer Ahmad (PW12) and Abdul Sattar (PW13) have not given any plausible reasoning about their availability at the shop of Abddul Ghaffar (deceased). Naseer Ahmad (PW12) has admitted this fact in his cross-examination which is hereby reproduced as under:-

“I did not give the detailed description of notes and did not give any reason for my visit at the shop of Abdul Ghaffar deceased at the day of occurrence.”

Similarly the testimony of Abdul Sattar (PW2) is crucial and important in this regard, who during the cross-examination stated infra:-

“In my statements to the police and in my statement in the court I did not give the detail of cash and purpose of my visit at the shop of Abdul Ghaffar at the time of occurrence at the place of occurrence”

Similarly PW12 and PW13 had narrated in the cross-examination that accused persons did not search them so a question arises if the appellants had come to commit dacoity why they left the PWs unsearched and also the appellants had nothing to prevent them from doing so, thus, their presence at the place of occurrence is highly doubtful and not believable. In this regard we respectfully refer the case law reported as “**Mst.Sughra Begum and another v. Qaiser Pervez and others**” (2015 SCMR 1142) wherein the Hon’ble Supreme Court of Pakistan has laid down the following dictum:-

“ A chance witness, in legal parlance is the one who claims that he was present on the crime spot at the fateful time, albeit, his presence there was a sheer chance as in the ordinary course of business, place of residence and normal course of events, he was not supposed to be present on the spot but at a place where he resides, carries on business or runs day to day life affairs. It is in this context that the testimony of chance witness, ordinarily, is not accepted unless justifiable reasons are shown to establish his presence at the crime scene at the relevant time. In normal course, the presumption under the law would operate about his absence from the crime spot. True that in rare cases, the testimony of chance witness may be relied upon, provided some convincing explanations appealing to prudent mind for his presence on the crime spot are put forth, when the occurrence took place otherwise, his testimony would fall within the category of suspect evidence and cannot be accepted without a pinch of salt.”

All the above facts mentioned op-cit clearly demonstrate that Naseer Ahmed (PW12) and Abdul Sattar (PW13) are chance witnesses, they are closely related to the deceased as Naseer Ahmad (PW12) is a nephew, whereas, Abdul Sattar (PW13) is a cousin of Abdul Ghaffar deceased. Hence, their evidence is discarded.

12. The appellants were arrested in this case on 16.01.2017 and were sent to judicial lock up for identification parade which was held on 13.01.2017 jointly. We have observed that identification parade was not held in accordance with law because it is settled proposition of law that joint identification parade has no evidentiary value. Similarly Naseer Ahmad (PW12) identified the person sitting at serial No. 6 namely Muhammad Ashraf son of Muhammad Afzal as accused and Mr. Muhammad Naeem learned Magistrate Ist Class (PW16) firstly wrote in his report that witness Naseer Ahmad identified the person sitting at serial No. 6 in row No. 3 as accused and subsequently by overwriting converted it into No. 7 and this fact has also been admitted by (PW16) in cross-examination that it is correct that at serial No. 7 in second last line

firstly figure was written 6 but afterwards it was made 7 by overwriting and at page No. 7 of identification parade report at serial No. 6 name of Muhammad Ashraf son of Muhammad Afzal caste Baloch R/O Kaneri District Bhakkar was mentioned in line No. 3. It is correct that at page No. 8 it was mentioned that witness identified accused person at serial No. 6 line No. 3 that said accused made fire shot and committed the murder of his uncle. Muhammad Naeem Magistrate 1st class (PW16) also admitted this fact as correct that in his report Exh. PU he did not made that mistake in his report. It is also admitted by the said PW that he did not put any initial/signatures on overwriting. Similarly Naseer Ahmad (PW13) had not identified Farooq Khan appellant during the course of identification parade rather he identified under-trial prisoner namely Muhammad Ashraf son of Muhammad Afzal caste Baloch R/O Kaneri District Bhakkar as accused who was sitting at line No. 3. Further deposed that the said accused entered into the house of the deceased snatched mobile phone and amount from Abdul Ghaffar and murdered said Abdul Ghaffar.

13. We have observed another illegality in the proceedings of identification test parade that Mr. Muhammad Naeem learned Magistrate 1st class (PW16) had not mentioned ages and features of the dummies. More so, he also admitted that accused person raised objection that after their arrest their pictures were taken and their movie was made by the police, the said objection of the accused persons was not rebutted by the Complainant and eyewitnesses and it was not attended to by him. Moreover, Manzoor Ahmad, SI/I.O (PW18) narrated in his examination-in-chief that on 15.01.2017 informer informed him that in case of interrogation from the accused persons Farooq Khan, Sanwal Khan and Alam Khan matter could be traced out. On 16.01.2017 at the information of informer he arrested the accused persons Farooq Khan, Sanwal Khan and Alam Khan present in the court from Kalwal Adda under section 54, Cr.P.C. and they were produced in the court of Magistrate. Said accused persons were sent to judicial lock up on 16.01.2017 for the purpose of

identification parade through application Exh. PX. In the eventuality of above mentioned facts, it is crystal clear that identification parade was not held in accordance with the law, for the reasons this piece of evidence is not helpful to the prosecution. The August Supreme Court of Pakistan in case of Kamal Din alias Kamala Vs. The State (2018 SCMR 577) at page 580 while enunciating the principles of law relating to the identification parade has observed as under:-

“Apart from that the test identification parade held in this case was a joint parade wherein two accused persons had been made to stand with dummies in two lines and their identification had taken place simultaneously in one go. This Court has also clarified in the cases of Lal Pasand v. The State (PLD 1981 SC 142), Ziaullah alias Jaji v. The State (2008 SCMR 1210), Bacha Zab v. The State (2010 SCMR 1189), Sahfqat Mahmud and others v. The State (2011 SCMR 537) and Gulfam and another v. The State (2017 SCMR 1189) that the identification of many accused in one go is not proper besides being unsafe.”

14. We have also noted that Naseer Ahmad (PW12) and Abdul Sattar (PW13) have made dishonest improvements in their statements before the Court and the relevant parts of their statements during cross-examination, read as under:-

PW-12 Naseer Ahmad

“In my examination in chief I submitted that Alam Khan made fire shot at deceased Abdul Ghaffar and I mentioned the same statement in identification parade Exh. PU. Confronted with Exh. PU where it is not so mentioned.

It is incorrect that during identification parade I have submitted that all three accused persons had snatched mobile phone and cash separately from deceased Abdul Ghaffar. Confronted with Exh. PU where it is so mentioned.

I have submitted that person in line No. 3 at serial No. 6 made fire shot at Abdul Ghaffar and snatched cash and mobile. Confronted with Exh. PU where it is so recorded.

PW-13 Abdul Sattar

“In my statement after identification parade I submitted that Farooq Khan snatched cash and mobile phone from the deceased. Confronted with Exh. DC where it is not so recorded. In identification parade I told that Alam Khan made fire shot which hit Abdul Ghaffar. Confronted with Exh PU where it is not so recorded. It is incorrect that in identification parade I have submitted that person present in line No. 1 at serial No. 7 snatched cash and mobile phone from Abdul Ghaffar and he was armed with pistol. Confronted with Exh. PU where it is so recorded.

It is incorrect that in identification parade I identified the person present in line No. 3 serial No. 6 that he made fire shot at deceased Abdul Ghaffar. Confronted with Exh. PU where it is so recorded.

It is also a settled maxim that when a witness improves his version to strengthen the prosecution case, his improved statement cannot be relied upon as the witness has improved his statement dishonestly, therefore, his credibility becomes doubtful on the well-known principle of criminal jurisprudence that improvements once found deliberate and dishonest cast serious doubt on the veracity of such witnesses. Reference in this respect may be made to the case of “**Farman Ahmad Vs. Muhammad Inayat and others**” (2007 SCMR 1825) wherein at page 1829 it was held as under:-

“.... It is also a settled maxim when a witness improves his version to strengthen the prosecution case, his improved statement subsequently made cannot be relied upon as the witness had improved his statement dishonestly, therefore, his credibility becomes doubtful on the well-known principle of criminal jurisprudence that improvements once found deliberate and dishonest cast serious doubt on the veracity of such witnesses.”

Similar view was taken by the Hon’ble Supreme Court of Pakistan in the case of “**Syed Saeed Muhammad Shah and another vs. The State**” (1993 SCMR 550), “**Akhtar Ali and others Vs. The State**” (2008 SCMR 6) and **Muhammad Jamil Vs. Muhammad Akram and others** (2009 SCMR 120).

15. Now we advert to recoveries affected from the appellants in this case. According to the prosecution case on 26.01.2017 recovery of pistol 30 bore along with five live bullets were taken into possession vide memo Exh. PL on the pointation of Alam Khan appellant from the graveyard of *Baban Sharif* which was concealed under acacia tree (*Kikar*) after digging the earth. Similarly on 29.01.2017 recovery of pistol 30 bore along with five live bullets was recovered vide memo Exh.PM on the pointation of appellant Sanwal Khan from metaled road leading towards *Basti Mai roshan* from sand-dune. Likewise on 27.01.2017 the appellant Farooq Khan got recovered pistol 30 bore along with three live bullets vide memo Exh. PR on his pointation from the reeds plant (*Sirkanda*) on the way from the western side of his house. According to the report of Punjab Forensic Science Agency Exh. PHH pistol allegedly recovered from Sanwal Khan appellant was found to be in mechanical operating condition with safety features functioning properly, pistol allegedly recovered from Alam Khan appellant was examined and found to be in mechanical operating condition with safety features functioning properly. So far as pistol allegedly recovered from Farooq Khan appellant is concerned that did not function. Pistol (P-2) allegedly recovered from Alam Khan appellant and item No. C1 cartridge, has been fired from the same pistol, the crime empty was sent to the office of Punjab Forensic Science Agency on 25.01.2017 and pistol P2 was sent to the Office of Punjab Forensic Science Agency on 09.2.2017, although report of Punjab Forensic Science Agency is positive qua pistol but it has not been explained by the prosecution that why the crime empty was not sent to the Office of Punjab Forensic Science Agency till the arrest of appellant Alam Khan, this fact makes the report of Punjab Forensic Science Agency highly doubtful. Reliance is placed on the cases reported as **“Noor Ahmad vs. The State and others”** (2019 SCMR 1327), **“Nazeer Ahmad vs. The State”** (2016 SCMR 1628) and **“Israr Ali vs. The State”** (2007 SCMR 525).

16. The prosecution has also stressed upon another piece of evidence which is recovery of currency notes from the appellants but the said recovery of currency notes is not helpful to the prosecution case because no number of currency notes have been given in the F.I.R and subsequently after the recovery of alleged currency notes no identification of currency notes was held. Even in the recovery memos Exh. PN and Exh. PP, no number of currency notes has been mentioned, for the reason these recovery memos have no evidentiary worth in the eye of law. Even otherwise, currency notes are easily available in the market and could easily be planted. Reference is made to the judgment reported as **'Muhammad Imran v. The State'** (2021 YLR 95).

17. The learned Deputy Prosecutor General has also emphasized that recovery of mobile phone of the deceased was got recovered from Farooq Khan appellant from the reeds plant through recovery memo Exh. PQ. The prosecution has not mentioned any number of Q-Mobile which was allegedly snatched by the appellant. Similarly it is admitted by Naseer Ahmad (PW12) in his cross-examination that he had not produced any proof of ownership of Q-mobile in his statement Exh. PT to the Investigating Officer during the investigation.

18. The learned Deputy Prosecutor General has also frazzled upon another piece of evidence which is recovery of motorcycle which was used by the appellants during the course of occurrence and was got recovered by appellant Alam Khan on 01.02.2017. This piece of evidence is also not helpful to the prosecution because we have already discarded the ocular account, hence, the recovery of above mentioned motorcycle is not sufficient for sustaining the convictions and sentences of the appellants.

19. In view of the combined study of the entire evidence and careful appraisal of the same we have come to an inescapable conclusion that there is no corroboratory evidence of any legal worth to give the story set up in the FIR any credence and strength rather the prosecution case is full

of improbabilities, legal and factual infirmities of fatal nature and is pregnant with bristling doubts of grave nature. Thus, the prosecution has miserably failed to connect the neck of the appellants with the crime in any manner whatsoever.

20. Resume of the above discussion is that, we are of the view that the prosecution has failed to prove its case against Alam Khan, Farooq Khan and Sanwal Khan (appellants) beyond any shadow of doubt, therefore, we **accept Criminal Appeal No.87338-J of 2017 and Criminal Appeal No. 87339 of 2017** filed by Alam Khan, Farooq Khan and Sanwal Khan (appellants), set aside their convictions and sentences recorded by the learned Additional Sessions Judge, Kallur Kot, District Bhakkar *vide* judgment dated 21.07.2017 and acquit them of the charges by extending them the benefit of doubt. The appellants are in jail; they be enfranchised trice from the jail forthwith if not required in any other case.

21. **Murder Reference No.443 of 2017** is answered in the **NEGATIVE** and the sentence of death of Alam Khan appellant is **NOT CONFIRMED.**

(Shehram Sarwar Ch.)
Judge

(Muhammad Tariq Nadeem)
Judge

Khurram

Approved for reporting

JUDGE

JUDGE